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Submitter Information

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General Comment

Please see the attached comments from SAS Institute Inc.

Attachments

SAS Response to OSTP RFI - AI Action Plan

March 14, 2025

AI Action Plan
Attn: Faisal D'Souza
Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO)
2415 Eisenhower Avenue
Alexandria, VA 22314

(Submitted electronically via regulations.gov)

SAS Institute Inc.'s Response to Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Artificial Intelligence is poised to influence all aspects of contemporary life and affect every area of public policy. SAS commends the administration for proactively seeking public input on a broad spectrum of significant issues. SAS is pleased to submit its response to the Request for Information on the US AI Action Plan.

About SAS

SAS, a U.S. owned and operated company founded and headquartered in North Carolina, has been a leader in data and AI for decades. SAS is dedicated to advancing AI development to transform data into intelligence for its customers across many sectors of the economy, including banking, manufacturing, pharmaceuticals, and more, bringing commercial solutions that scale to government.

Over the past decade, SAS has made significant investments to further enhance AI and advanced analytics solutions tailored to the specific needs of specific industries. For instance, SAS has established a division focused on proven anti-fraud solutions that assist governments and organizations in detecting and preventing payments fraud, money laundering, benefits fraud, and more. Additionally, SAS offers tools to support data quality, verification, standardization, integration, and matching, which are crucial steps in implementing an effective analytical solution for fraud, waste, and abuse.

We are grateful for the chance to contribute to the AI Action Plan. Below are our comments on key issues highlighted in the RFI.

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AI is not just Generative AI

Generative AI has introduced significant technological advancements and has been the primary focus in recent AI policy discussions. But Generative AI is not the only AI technique. Policymakers should recognize that AI encompasses a broader range of techniques and technologies, each with its own value. Other AI techniques can operate independently or complement Generative AI, allowing those deploying AI to choose the right techniques and optimize their approach based on each technology's strengths.

For instance, some SAS customers have leveraged AI and optimization techniques to enhance processes such as efficient resource allocation, vehicle routing, and other complex issues. Others have paired Generative AI with other natural language processing techniques to achieve better performance. Computer vision, digital twins, and streaming analytics (e.g., from sensors) remain important techniques for industrial applications. Additionally, SAS is exploring the use of quantum computing in hybrid optimization approaches to achieve faster and improved outcomes. SAS recommends that the government consider focusing on and investing in these other important AI techniques, as well as Generative AI.

Prioritize harmonization of regulatory and procurement requirements

As AI becomes integrated into areas that are already regulated or governed by complex procurement rules, policymakers should strive to harmonize and streamline these requirements across various domains, agencies, and subject matter areas. The harmonization of cybersecurity regulations is already a significant concern for many policymakers. As noted in the RFI, AI introduces new security challenges, such as attacks on AI models themselves. To the extent that regulation is necessary, any new rules should be aligned with existing cybersecurity approaches. Similarly, where AI raises privacy issues, the resulting regulations should align with current privacy frameworks, rather than creating additional isolated sets of rules.

Incentivize open source security

Open source software has become essential to the modern software economy. This software is often maintained by hobbyists, volunteers, or organizations that may lack the resources or incentives to prioritize security issues or respond promptly to newly discovered vulnerabilities. Nonetheless, open source software projects serve as critical building blocks in enterprise and government AI and software infrastructure. The widespread use of the same open source software by numerous organizations increases the risk that a single vulnerability could have significant repercussions.

The government occupies a unique position to devise innovative incentive structures to mitigate these risks and to facilitate their implementation in collaboration with the private sector.

Approach technology policy from a holistic perspective

The United States has taken measures to invest in, regulate, and control critical AI-related technologies such as chips and model weights. These actions have been largely independent of intellectual property policy. But they should be viewed together, because intellectual property policy both affects—and is affected by—national competitiveness and AI policy priorities.

Policymakers seeking to invest in, regulate, or control technology deemed critical by the country should remain aware that companies or individuals of any nationality can apply for patents on any technology in patent offices across the globe. It is not necessary for the applicant to have created a tangible product; theoretical inventions are acceptable. In court, even without a strong claim, a patent owner can use the cost of litigation to force settlements, disrupt businesses, and seek confidential technical information through civil discovery. In the International Trade Commission (ITC), foreign entities can request exclusion orders based on US patents, impacting supply chains of US companies. Plaintiffs in civil litigation often receive support from litigation funders whose identities are undisclosed and could include foreign sovereign wealth funds or international competitors.

When crafting the AI Action plan, policymakers should consider whether these aspects of current intellectual property practices align with the country's overall policy objectives.

Ensure AI makes patent examination better, not worse

The US patent system serves an important role in incentivizing innovation. For the system to work as intended, patents should only be issued when they are warranted. One of the most difficult and time consuming tasks that is critical to patent examination is searching for prior art and evaluating, based on the relevant art, whether an invention is truly novel and nonobvious. The job of a patent examiner is challenging, with limited time to understand an application, search for prior art, and determine its significance. AI can serve an important role in augmenting this process. But, at least with today's technology, the review process should not overly rely on AI for searching or analysis, as it may create a false sense of examination quality instead of improving it and result in improperly granted patents that will impede innovation instead of promoting progress.

Conclusion

SAS values the opportunity to provide its comments on these issues and look forward to the steps taken by OSTP to support a strong AI ecosystem in the United States. SAS is prepared to assist OSTP and other stakeholders in achieving these objectives.